

HEADNOTE

“If the court has already dealt with both infringement and validity issues in a preceding interim proceedings, a joint hearing of infringement and counterclaim for revocation appears sensible and expedient already for reasons of efficiency.”

COURT

Local Division in Düsseldorf

PROCEEDINGS

Infringement action

PATENT

EP 3 466 498 B1

Search device for avalanche victims
and method for operating a search
device for avalanche victims

KEYWORDS

Main proceedings

unified decision

prior interim proceedings

efficiency

SUMMARY

The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to a search device for avalanche victims and method for operating a search device for avalanche victims. According to the headnotes of the decision, when a court has already addressed both infringement and validity questions during earlier interim proceedings, it is sensible and efficient to hold a joint hearing that covers both the infringement claim and the counterclaim for revocation.